ESTATE LATE GODFREY MADAMOMBE REPRESENTED BY ANGELA MADAMOMBE (in her capacity as Executrix Dative).

vs

TAWANDA MIKE MATANI

IN THE HIGH COURT OF ZIMBABWE
MUTEVEDZI J
BULAWAYO, 19 December 2025 and 2 June 2026

J. Sibanda, for the applicant
J.M.Nyarota, for the respondent

COURT APPLICATION

MUTEVEDZI J: Among other questions, the novel issue which sticks out in this court application is whether or not, where an estate late is concerned, it is fatal to invert the citation of an executor and have his or her name preceded by that of the estate.

[1] The court application is for a declaratory order and consequential relief. The applicant seeks an order in the following terms:

a. That the agreement of sale of Lot 10 of Gwelo Small Holding 23 in extent 9279 square metres entered into by and between the late Godfrey Madamombe and the respondent be and is hereby declared null and void and of no effect whatsoever on account of illegality.
b. Any funds paid by respondent in pursuit of the said agreement are forfeit.
c. The respondent and all those who occupy through him should vacate the portion of Lot 10 Gwelo Small Holding 23 in extent 9279 square metres that he occupies.
d. In the event that respondent fails to vacate the said portion, the Deputy Sheriff of this court shall carry out the eviction of the respondent and all those who occupy through him from portion of Plot 10 Gwelo Small Holding 23.
e. Respondent pays costs of this application on the Legal Practitioner-client scale.

BACKGROUND FACTS

[2] The facts of this case are largely common cause. Before his demise, the late Godfrey Witness Madamombe (hereinafter referred to as "the deceased") sold Lot 10 of Gwelo Small Holding 23 (Lot 10) measuring 9279 square metres in extent to Tawanda Mike

Matani (the respondent.) The agreement of sale was concluded on 30 November 2015. The purchase price was set at thirty thousand United States dollars (US$30 000.00). In addition, on 2 December 2015, the parties deposed to separate affidavits in which they both explained that notwithstanding the agreement in which the land being sold was described as the entirety of Lot 10, in reality the sale was for a smaller piece of that land comprising of one acre and that the real purchase price was eighteen thousand United States dollars (US$18 000.00). Even more egregious was the disclosure in their affidavits that what had motivated the misrepresentation in the main agreement of sale was their desire to enable the respondent to secure a loan from a building society called CABS using the entirety of Lot 10 as collateral.

[3] Sometime after the above agreements were concluded, the deceased's health deteriorated. He succumbed to illness on 25 July 2017. Using the sham agreement which gave him ownership of the whole of Lot 10, the respondent applied for and obtained title on 22 February 2018. Later, the deceased's children took issue with the transfer of the land into the respondent's name. They filed a court application seeking the nullification of the transfer. They succeeded. This Court in case number HCBC 798/24 and through judgment number HB141/25, set aside the Deed of Transfer on the ground that the Special Power of Attorney given to the respondent by the deceased was no longer legally valid at the time the transfer documents were lodged because the deceased had passed on. The respondent challenged that decision by filing an appeal against it under case number SCB138/25. The Supreme Court largely dismissed the appeal. But before that appeal had been heard, the applicant had filed the present application.

Preliminary objections

[4] In his opposing papers, the respondent raised a string of preliminary objections. He argued that the applicant has no *locus standi* to bring the suit; that the founding affidavit was fatally defective because it was premised on hearsay evidence; that the applicant failed to disclose material facts in her affidavit and that there is no valid cause of action as the applicant's claim is founded on an agreement of sale that was overtaken by events.

[5] At the hearing, Mr *Sibanda,* for the applicant, submitted that all the procedural issues raised by the respondent spoke to the merits of the case and were prematurely raised save for the issue of *locus standi.* On his part, Mr *Nyarota,* for the respondent conceded the applicant's argument. He abandoned all other preliminary objections but persisted with the contention that the applicant did not have *locus standi*.

[6] In respect of *locus standi*, Mr *Nyarota*'s argument was that the application is a nullity because the applicant is the Estate late Godfrey Madamombe. He said it is not possible for an estate to sue or be sued in its own name but can only litigate through its executor or executrix dative. He supported his contention with the cases of *Chiangwa* v *Katerere* SC61-21; *Nyandoro & Anor* v *Nyandoro & Ors* HH87-08; and *Mhlanga* v *Ndlovu* HB54-04. He also relied on the authority of *Mupandawana* v *Juwara & Ors* HH253-24 for the proposition that citation of parties is not just a formality but an important consideration on which an application may stand or fall. He said because of the above indiscretion, there is no application before this Court.

[7] In his heads of argument, the respondent said his failure to challenge the applicant's *locus standi* in past litigation between the parties could not be used to preclude him from taking the point now. He directed the court to the case of *Zinyemba* v *Nyakamba* HH108-24 where the court held that failure to challenge one's representative capacity in previous applications was immaterial to the challenge before it.

[8] Mr *Sibanda* for the applicant strenuously challenged the respondent's contention. He stated that in the present case the executrix dative is cited by name and the capacity in which she has been cited is also stated. In his view, the authorities cited by the respondent are not applicable in this case because all of them speak to instances where the executor dative of the estate is not cited at all. He further argued that the application could not be deemed a nullity on the basis that the name of the estate appeared before that of the executor. He referred the court to a number of authorities where the courts had accepted similar citations as in this case. These were the cases of *Estate late Attwell Garande represented by Sharpstone Garande* v *Maisaitti & Ors* HH5-08 and *Estate late Zebediah Ranganayi (represented by Kumbirayi Magwaizwendota)* v *City of Masvingo* HH241-23. Counsel further argued that the respondent had previously litigated with the applicant but

had not raised any issues with the citation of the applicant. He prayed for the dismissal of the point *in limine.*

[9] I admit that the question of how an estate must be cited in litigation is a well-trodden path. The argument which the respondent raises in this matter is however new. As will be demonstrated, the arguments regarding this issue usually relate to the citation of the estate-late alone. In other words, the contests ordinarily revolve around the effect of a complete non citation of the executor in court proceedings which is entirely different from the contention being raised in the instant case.

[10] *Locus standi* relates to the question whether or not a particular person, natural or juristic, is entitled to seek redress or relief from the courts in respect of a particular justiciable issue. In the case of *Makarudze & Anor* v *Bungu & Ors* 2015 (1) ZLR 15 (H) the court described standing as one's right, ability or capacity to bring legal proceedings in a court of law. Put differently, standing determines whether a person has the right to seek redress or relief on a matter before a tribunal duly authorised to grant the redress being sought. Put in yet another way, for a person/party to be entertained before the courts with regard to a cause of action, that person/party must have the requisite standing.

[11] Here, the respondent contends that *Estate Late Godfrey Madamombe* cannot sue or be sued as it is neither a natural nor legal person. There is no gainsaying that submission. The authorities cited by the respondent to support that proposition clearly spell out that law. What I find contentious and debatable is their use to support the respondent's position in this particular case. All of them were decided on the ratio that only a person, that is natural or juristic can sue or be sued. It is axiomatic that a deceased estate is neither a natural nor a juristic person. It is the reason why an estate can only be cited in litigation through its executor. Yet, the respondent agrees that both the executor of the estate and the estate itself were cited in this application. What he takes offence with, is the format of the citation. His view is simple. It is that where one cites a deceased estate in litigation, the mention of the deceased estate must necessarily be preceded by the name of the executor.

[12] My view as I stated earlier, is that the law is clear. What is impermissible is to cite the estate alone for the reasons I indicated. Where a party unequivocally indicates that the estate is represented by its executor, there can be no question about the validity of such citation. My understanding of the issue finds support in various authorities determined by this court where the same or similar citations of an estate were followed. Although, this question was not as it is here, specifically an issue before the courts therein, the same format which was adopted by the applicant in this case was successfully used in the cases of *Tomu Nyandoro v Estate late Paulino Oliviera Martins (represented by the Executor) and Others* HH17-10; *Estate Late Jean Headley -represented by John Moir Rosslyn Hedley (in his capacity as executor) v Angwa City Investments Three (Pvt) Ltd and Others* HH41-13; *Estate late Attwell Garande represented by Sharpstone Garande* v *Maisaitti & Ors* HH5-08 and *Estate late Zebediah Ranganayi (represented by Kumbirayi Magwaizwendota)* v *City of Masvingo* HH241-23. Here, the executrix dative is cited as the representative of the estate. It is not the estate that is suing. Ascribing anything else to the application would amount to a splitting of hairs. It is more a matter of form than substance. I conclude therefore, that it is not fatal to invert the citations of the executor and the estate such that the estate is mentioned before the executor.

[13] As a result, I am satisfied that contrary to the respondent's protestations, the applicant is properly cited. Once that is accepted, the argument that the applicant has no *locus standi* needs no debate. It is a dead end because clearly, the applicant has a direct and substantial interest in the property. Accordingly, the point in *limine* is dismissed.

The merits

The applicant's case

[14] On the merits, the applicant stated that on the face of it, the agreement of sale entered into between the deceased and the respondent on 30 November 2015 appeared legal. That was however completely changed by the affidavits that were deposed to by the deceased and the respondent on 2 December 2015. The affidavits indicate that at the time of the sale of the one-acre piece of land, the land had not been subdivided and there was no subdivision permit for it. In that regard, the applicant further argued that it becomes common cause that the agreement was illegal and unenforceable. Mr *Sibanda* said the

agreement contravened the peremptory provisions of section 39 of the Regional, Town and Country Planning Act *[Chapter 29:12,]* (the Act) which proscribes the sale and or transfer of any portion of land that is not subdivided. He supported his averments with the cases of *City of Gweru* v *Kombayi* 1991 (1) ZLR 333 (S) and *Silonda v Nkomo* SC6-22.

The respondent's case

[15] The respondent argued that the applicant did not prove, on a balance of probabilities, that it is entitled to the relief sought though he conceded that the agreement of sale dated 30 November 2015 is null and void for want of a subdivision permit. His contention was that the original agreement was cancelled when the parties entered into a second agreement on 17 November 2016. The new agreement, so the argument persisted, was in respect of the whole property for a sum of fifty thousand united stated dollars (US$50 000.00). The deceased signed a power of attorney and gave *Kholwani Ngwenya* and/or *Joylyn Fadzai Magosvongwe* authority to appear before the Registrar of Deeds and pass transfer of the property to the respondent. The deceased died on 25 July 2017. Counsel also argued that the applicant did not prove that the respondent took occupation of the property in terms of the agreement of sale entered into on 30 November 2015. In addition, he argued that the applicant did not establish that the respondent breached the agreement of sale of 17 November 2016 which gave him occupation of the property. A further argument was that the applicant failed to demonstrate the link between the original agreement of sale and the relief it is seeking. In conclusion, he submitted that the application is frivolous, vexatious and purely of academic interest with no practical relevance because the applicant is seeking to set aside an agreement of sale which the parties to it by implication nullified by not consummating it and entering into a fresh one.

The Supreme Court intervention

[16] At the end of the hearing, I reserved judgment. But before I completed the preparation of the judgment, the Supreme Court, as indicated in earlier paragraphs, confirmed the order of this Court in HB141/25 and declared the Deed of Transfer number 184/2018 null and void. I then caused the parties to file supplementary heads of arguments

on the effect of the Supreme Court order on this application. I asked both counsel to address me on whether or not the Supreme Court judgment rendered their dispute in this case moot. Both complied. They were in agreement that the dispute in this application remains live. I agree because the transfer was a separate juristic act from the agreement of sale. I am therefore convinced that the matter is not moot. The causes of action in the two applications, though related, are distinct. In the first application, the issue was cancellation of the deed of transfer whilst in the present one, it is the validity of the agreement of sale between the parties, forfeiture of the purchase price and eviction. The declaratory order pertaining the deed of transfer neither addresses the validity/ invalidity of the agreement of sale nor does it speak to the forfeiture of the purchase price and the eviction.

Issue for determination

[17] The only issue for determination in this case is whether or not the agreement of sale dated 30 November 2015 is valid. I have already stated that counsel for the respondent conceded that it is not for want of compliance with the law. I must also state it upfront that I have not been called to determine the legality or otherwise of the so-called subsequent agreement entered into and between the same parties. It is therefore an issue which is not before me.

[18] The starting point is that the law permits parties to an agreement to cancel, terminate or modify it by a subsequent agreement between them if they so desire. That is usually achieved through mutual consent, a settlement agreement, or by novation where a new contract replaces the old one. Any such new agreement must however, expressly indicate that it supersedes and cancels the previous agreement to avoid confusion. Cancellation or novation of an existing agreement requires unequivocal intention from all parties involved. Under the general principles of contract law, a contract is not discharged by mere assertion. Cancellation must therefore be express or arise by necessary implication from conduct that is unequivocally inconsistent with the continued existence of the agreement.

[19] In *Mupotola* v *Southern African Development Community* SC7-06 ZIYAMBI JA made the following pertinent remarks regarding novation at p 5 of the judgment: -

> "Novation means replacing an existing obligation by a new one, the existing obligation being thereby discharged. See The Law of Contract in South Africa Third Ed by R.H Christie at p498. The

> above definition presupposes that both the existing obligation and the new one arise out of valid contracts. "When parties novate they intend to replace a valid contract by another valid contract." See Swadif (Pvt) Ltd v Dyke 1978(1) SA 928 (A) at 940 quoted by Christie in the Law of Contract in South Africa, supra. The starting point, therefore, in determining this issue is to consider whether the first agreement constituted a valid contract. This being so, the first agreement was a non-event and there could be no novation of a contract which did not exist…" (Own emphasis)

[20] The court in *Hamilton* v *van Zyl* 1983 (4) SA 379 (ECD) at 383D-E, stated that:

> "In pointing out the difference between novation and compromise (transactio) Wessels on The Law of Contract in South Africa 2nd ed. vol. II para. 2458 states: 'There is a great similarity between transactio and novation and as a rule the principles which apply to the latter apply to the former. (Voet 46.2.3). There is however this difference between the two. When parties novate they intend to replace a valid contract by another valid contract, and if therefore the novated contract is invalid, the novating contract is, as a general rule, of no effect. If, however, a claim is made upon a contract, about the validity of which the defendant has a doubt, and a transactio follows, the defendant cannot upset the compromise on the ground that the agreement which was compromised was in fact invalid." (Emphasis added)

[21] The thrust of these authorities is that novation or indeed cancellation, is predicated upon two indispensable elements. Firstly, there must exist a **valid** and **enforceable** obligation capable of being extinguished and secondly, the subsequent agreement must create new and legally binding obligations, clearly demonstrating the parties' intention to substitute the earlier contract in its entirety. In the absence of those requirements, particularly where the original agreement is void *ab initio*, or where the later agreement merely reaffirms the same obligations in altered form, novation or cancellation cannot, as a matter of law, be said to have occurred.

[22] In the case of *Estate Liebenberg* v *Standard Bank of South Africa Ltd* 1927 A.D. 502, the court cited Caney's *Law of Novation* at pp. 23-24 regarding when an intention to novate is to be inferred, as saying:

> "In truth, when a new agreement is made between the same parties (creditor and debtor) other than as security for payment (as to which see the discussion infra on negotiable instruments and bonds) without the intervention of any new person, it is necessary, in order to create a novation, that the new agreement should contain something different from what is contained in the earlier obligation. If it does not, then it is useless to declare an intention to novate, for a novation will not be effected. The difference may be in the quality of the obligation, as, for example, if the earlier obligation were determinate and the second alternative, or vice versa; or in the terms of the obligation as, for example, to security or sureties. If, however, a new debtor or creditor intervenes, this in itself is sufficient of a difference to create a novation without the making of any other distinction, provided, of course, there be the intention to discharge the old debtor, for otherwise the new debtor will be accessory to the old one, as in *William v Kirk*."(my emphasis)

[23] A comparison of the two agreements in issue here would reveal that: -

a. The property description is identical.

b. There is no express clause of rescission.
c. There is no reference to cancellation of the earlier agreement.
d. The only material change is the purchase price.

[24] In my view therefore, there is no evidence of a clear intention to extinguish the first agreement. If it was not cancelled, then it could only have been novated. But that avenue was again closed for the respondent. As demonstrated by the several authorities cited above, an invalid agreement is incapable of novation. Where parties structure a transaction to evade statutory requirements, the court will not permit the statute to be defeated by artifice. In the result, I hold that the first agreement was never validly cancelled. It remained intact with all its fatal deficiencies. The applicant therefore retains the right to seek a declarator that the agreement was void *ab intio* on account of illegality.

The consequential reliefs of forfeiture and eviction

[25] In her supplementary heads of argument which had been called for by the Court, to address it on the effect of the *ex turpi causa* and *in- pari delicto* rules, the applicant first submitted that at the hearing, the parties had not been *ad item* regarding the illegality of the first agreement of sale. She said her prayer for the consequential reliefs emanated directly from the principles of law which the Court had raised. She said those were indicated in her founding affidavit in paragraphs 39, 40 and 41. In Summary, her argument was that besides the illegality of the agreement, the respondent had attempted to cheat the deceased's estate of the property by having it transferred to his name and thereafter obtaining a loan of USD $18 000 secured by the collateral of the same property. For those reasons, the applicant indicated that she was not prepared to refund the money paid to the deceased as the purchase price under the illegal agreement. She added that instead of responding to the allegations the respondent chose to resort to a bare denial and empahsised peripheral issues particularly that the impugned contract was above board and valid. She however ultimately conceded that the court has discretion to relax the *in-pari delicto* rule in appropriate circumstances.

[26] On his part, the respondent contended that the principles of *ex turpi causa* and *in pari delicto* did not apply in the circumstances of this particular case. He said that explained why he had never addressed them in his opposing affidavit and heads of

arguments in the first place. His view was that the first agreement of 30 November 2015 was never consummated because the parties could not proceed with it on account of its illegality. He insisted that the Court must relate to the second agreement of 17 November 2016.

The law and its application to the facts

[27] I have held above, that the first agreement, upon a proper interpretation, constituted a sale of a subdivided portion of land effected in the absence of compliance with the requisite statutory formalities under s 39(1) of the Act. As such, it is subject to both the *ex turpi causa* and the *pari delicto* rules. As explained by the Supreme Court in the case of *Chioza v Siziba* SC 4-15, at p. 10 the *ex turpi causa non oritur actio* rule: -

> "… is absolute and admits of no exception … It is based on the principle, expressed variously, that the Court cannot aid a party to defeat the clear intention of an ordinance or statute; that Courts of justice cannot recognize and give validity to that which the legislature has declared shall be illegal and void; and that the courts will not permit to be done indirectly and obliquely what has expressly and directly been forbidden by the legislature."

[28] The same principle was stated in the case of *Dube v Khumalo* 1986(2) ZLR 103 (SC) at p 109 in the following terms: -

> "There are two rules which are of general application: The first is that an illegal agreement which has not yet been performed, either in whole or in part, will never be enforced. This rule is absolute and admits no exception. It is expressed in the maxim *ex turpi causa non oritur actio*. The second is expressed in another maxim in *pari delicto potior est conditio possidentis*."

[29] In this case, and applying the *ex turpi causa* rule, it can only follow that no rights or obligations may flow from the parties' agreement. But because the courts have long held the view that their purpose is to do justice between man and man, I am forced to turn and relate to the *in-pari delicto* rule. As held in *Chioza* (supra), that rule has two sides expressed by two related maxims. On one hand is the maxim '*in pari delicto potior est conditio defendentis,'* which when loosely translated entails that in instances where the plaintiff and the defendant's actions are tainted by turpitude, the position of the defendant is stronger, and the plaintiff is consequently at a disadvantage. On the other is the *'in pari delicto potior est conditio possidentis'* maxim whose essence is that where the parties are equally in the wrong, the position of the one in possession shall prevail. The rationale of the rule is not difficult to see. It is simply to discourage the courts from assisting those

who enter into illegal transactions, by withholding judicial assistance in the enforcement of illegal agreements which have not, either wholly or partly been performed, and letting losses from such enterprises lie where they fall. In short, the purpose of the *pari delictum* rule is to restrict the right of the rule-breakers to escape the effects of their performance or part performance of such contracts. That is so, because the application of the *pari delictum* rule in its raw and unqualified sense is dire.

[30] In the result, and as empahsised in *Chioza v Siziba* (Supra), a court retains the discretion to depart from the rigid application of the rule. It may do so, in instances where a party to an illegal contract's issue is not the enforcement of that unlawful agreement, but rather the mitigation of the effects of his illegal transaction. The court's intervention, is solely for purposes of preventing "an injustice or to satisfy the requirements of public policy, or obviate a situation where one party is unjustly enriched at the expense of the other." In doing so, the court is, in addition to the principles on which the maxim was built, guided the degree of turpitude of the parties to the illegal transaction; the enrichment of one delinquent at the expense of the other and whether or not public policy is not foreseeably affected by a grant or a refusal of the relief claimed.

[31] In this case, it would be inequitable for me to juxtapose the moral blameworthiness of the respondent against that of the applicant because the applicant was not in the picture at the time that the illegal agreement was concluded. What is proper is to compare the positions of the respondent and the deceased because they were the parties to that agreement.

[32] The applicant moved the Court to order the forfeiture of the purchase price paid by the respondent. Her argument is premised on the additional moral turpitude shown by the respondent in seeking and obtaining transfer of the deceased's property into his own name in the face of the illegal agreement between them. He did so, despite him having been alerted to the illegality of the contract. Further, the respondent did not deny that he had obtained a loan amounting to USD $ 18 000, from a bank using the entirety of the property in question. He must have been aware that he could not mortgage the entire property because he had only purchased a portion of it. He therefore secured a personal loan with land that did not wholly belong to him. Yet in that regard, there is no doubting that the

deceased was complicit in the misrepresentation. The affidavits which they both attested to after the agreement prove that. The parties were therefore equally in the wrong. What the respondent did alone was to effect the transfer of the property after the death of the deceased. I cannot therefore help but hold that the turpitude of the parties was in more ways than one, equal. I was not informed whether or not the loan has been fully serviced and the lien on the property was removed. Even if it was, I am still unable to quantify the advantage which the respondent could have derived from that transaction to justify any allegation of unjust enrichment on his part if the purchase price were to be returned to him. There is no question that the respondent enjoyed the use of the land in question from the time he took occupation to date. He may also have derived economic benefit from it but like with the others I also am unable to quantify that benefit. In the same vein, the deceased and consequently his estate benefitted from the money which the respondent paid as the purchase price. Needless to state, the total benefit derived is something that has not been ascertained. Given those difficulties, the considerations of public policy would militate against the forfeiture of the purchase price in the face of the scanty information at my disposal. In the final analysis, I am forced to let the loss lie where it falls and leave the parties each to his or her own mechanisms regarding the return or otherwise of the purchase price.

[33] The question of eviction, is to me, an open and shut one. I am of the view that the respondent's continued occupation of the property cannot be sustained at law. I have declared the agreement of sale between the deceased and the respondent to have been a nullity. In the absence of a valid and enforceable contract or any lawful title conferring a right of occupation, the respondent is clearly and effectively in unlawful possession. No contractual, statutory, or equitable basis has been established to justify his continued presence on the premises. Eviction is therefore both legally competent and an appropriate remedy in the circumstances.

Disposition

[34] In the final analysis, the preliminary objection regarding citation is ill conceived. It cannot defeat the application. Although inelegantly cited, the executrix was clearly

identified in her representative capacity as the applicant. The defect, as already said, is more of form than substance. In addition, and as agreed by the parties, the intervening decision of the Supreme Court did not render the dispute before me moot. A live and substantive dispute persisted between the parties regarding the existence, validity, and alleged cancellation of the first agreement of sale. I therefore properly remained seized with a justiciable controversy capable of resolution and the grant of effectual relief. More importantly, there was no evidence placed on record, of a clear and unequivocal intention to cancel the first agreement. The alleged second agreement does not expressly speak to that cancellation. It could not be novated because it was a nullity. The first agreement accordingly remained extant unless set aside on the ground of illegality. I confined myself to determining the issues placed before me through the pleadings and prayers and can neither grant relief not sought, nor determine matters not canvassed by the parties such as the effect or status of the so-called second agreement. The first agreement, being in contravention of s 39(1) of the Act, is void *ab initio*. No enforceable rights can emanate from it. Admittedly, while the *ex turpi causa* and *pari delicto* principles militate against enforcement of illegal agreements, they are not inflexibly applied. Guided by considerations of public policy and the prevention of unjust enrichment, I reached the conclusion that an order for the forfeiture of the purchase price is unwarranted but that the respondent's occupation of the portion, lacking any valid contractual or proprietary basis, is unlawful and eviction is competent.

Costs

[35] On the question of costs, the general rule is that they follow the cause. The applicant prayed for costs at a higher scale. MATHONSI J (now JA) stated thus in *Trinity Engineering (Pvt) Ltd* v *Karimazondo* HH672/15:

> "The third defendant has asked for costs on an ordinary scale to be awarded against the plaintiff. Such costs are not awarded first and foremost as a seal of the court's disapproval of the conduct of a party as well as recomeponse to a party that has been unnecessarily put out of pocket. The findings l have made in this matter point to conduct on the part of the plaintiff that should be admonished. A party that led itself to a bad decision set about to pull the wool of over the court's eyes by disowning what it had voluntarily done. In the process it dragged everyone through a lengthy and expensive trial which could have been avoided. The case cries for punitive costs."

The applicant submitted that the respondent's conduct in registering title with a defective power of attorney and disowning use of the agreement of sale which he knew was illegal

and unenforceable amounts to pulling wool over the court's eyes. Clearly, the applicant conflated issues in that regard. The conduct complained of related to and was exhibited in the application for cancellation of the Deed of Transfer not in the present case. She has therefore not made out a case for the award of punitive costs. I have no reason to depart from the general rule.

[36] In the result, **IT IS ORDERED THAT**:

a. **The agreement for the sale of Lot 10 of Gwelo Small Holding 23 measuring 9279 square metres in extent entered into by and between the late Godfrey Madamombe and the respondent be and is hereby declared null and void and of no effect whatsoever**
b. **The respondent and all those who claim occupation through him, be and are hereby directed to vacate the portion of Lot 10 Gwelo Small Holding 23 measuring 9279 square metres in extent, which the respondent occupies within seven (7) days of the grant of this order**
c. **In the event that the respondent fails to vacate the said portion, the Deputy Sheriff be and is hereby directed to evict the respondent and any person who claims occupation through the respondent from portion of Plot 10 Gwelo Small Holding 23.**
d. **The respondents shall pay the applicant's costs.**

MUTEVEDZI J……..

Job Sibanda and Associates Legal Practitioners applicant's legal practitioners
Garikai and Company Legal Practitioners respondent's legal practitioners